

STANDING ORDER NO. 160

Subject :- L.P.G. and improvised Hydrogen gas Cylinders-
Instructions regarding

(A) L.P.G. CYLINDERS:-

(I) INTRODUCTORY:- The Police Department is not concerned with the issue of licences or N.O.Cs. for storage sale, transport etc. of L.P.G. CYlinders. However, in view of recent fire incidents, necessity of vigilance and to initiate action in case of violation of provisions of Gas Cylinder Rules, 1981, cannot be over-emphasised.

2. The Deptt. of Labour vide their notification No.M-1272(I) dated 28.9.1938 has declared that any gas when compressed in any metal container, whether such gas, when so compressed, be in the gaseous or liquefied state, shall be deemed to be an explosive within the meaning of

102

Subject: Instructions for the audit and better control of expenditure

STANDING ORDER NO. 158

(525)

7 of the Act, the 'Gas Cylinders Rules-1981' have been framed for possession, storage, filling, transport etc. of L.P.G. Cylinders.

3. A licence under the Gas Cylinder Rules, 1981, is granted by the Chief Controller of Explosives (Nagpur) under rule 56, in forms 'E' and 'F' subject to certain conditions. A copy each of the conditions appended to these forms is enclosed as annexure-1.

(II) SUMMARY OF RULES:-

(a) Briefly under rule 69 every person holding a licence shall produce it to any of the officers specified in Rule-78.

(b) Under Rule 10 no person shall deliver a cylinder filled with any compressed gas, to a person, who is not the holder of a licence to possess such gas cylinder.

(c) Under Rule 13 Children under the age of 18 years and a person in a state of intoxication are prohibited from being employed in loading or unloading or transport of any compressed gas cylinder or any premises licenced under these rules.

(d) Under Rule 14, there is a prohibition on smoking, fires, lights and dangerous substances in proximity of a place where a cylinder is filled, stored or handled.

(e) Rule 17 makes it mandatory for a competent person (as defined in the rule) to be incharge of operation or filling cylinders, loading and unloading, examination or testing of Cylinders.

(f) Rule 18 deals with handling and use of cylinders and rule 20 with storage of cylinders (extracts enclosed as annexure-II)

(g) Rule 34 and 35 lays down procedure for transport of cylinders by vehicles and restriction on their transport (extract enclosed as annexure-III)

(h) Rule 37 provides for protection of valves during transport.

(III) ACTION BY POLICE:-

Rules 78 authorises all police officers of the rank not below that of Sub-Inspector in their respective areas over which their authority extends, to exercise the power specified in sub-section I of section 7 of the Act (Powers for Inspection, search, seizure and detention). Thus any officer of the rank of Sub-Inspector or above can take cognizance of the violation of the provisions of these rules and take action against a licensee.

(IV) PUNITIVE
PROVISION:-

Section 5(3) of the Indian Explosive Act 1884 provides for action for contravention of any of the provisions of the rules as under:-

(a) In case of import or manufacture of any explosive in such contravention, with imprisonment for a term which may extend to three years, or with fine which may extend to five thousand rupees, or with both.

(b) In case of possession, use, sale or transport of any explosive in such contravention, with imprisonment for a term which may extend to two years, or with fine which may extend to three thousand rupees, or with both, and

(c) In any other case, with fine which may extend to one thousand rupees.

(V) ACTION BY
PROSECUTION:-

Whenever any prosecution is launched under section 5(3) of the Indian Explosive Act, 1884, details thereof must be sent to the Chief Controller of the Explosive (Nagpur) for his information so that he could take necessary action for cancellation, suspension and non-renewal etc. of the licence.

(VI) RECORD:-

A list of all such licences shall be maintained in register No.17 part 3 form 22-68(C) of Punjab Police Rules, in all Police Stations.

(VII) REFERENCE
BOOKS:-

DCP/Spl. Cell will please arrange to procure copies of the above mentioned rules and the Indian Explosive Act, 1884 and supply the same to all Distts./Units as per their requirement so that concerned staff get thoroughly acquainted with the same.

(B) IMPROVISED CYLINDERS :-

1. The selling of Hydrogen gas filled in balloons is a common trade. Many traders can be seen selling gas filled balloons in markets, main bazars and at fairs etc. The traders as well as customers, usually children, are ignorant about the hazards and risks involved in filling Hydrogen gas in toy balloons at public places. The production of such gas in improvised vessels is fraught with danger as the container is liable to explode causing grievous injuries to persons and damage to property in the vicinity.

2. Instances are not lacking when serious explosions occurred due to the bursting of improvised gas cylinders in which Hydrogen gas was being generated by toy balloon vendors in exhibitions and at other places

containers in public places cannot be over emphasised.

3. The person, who prepares Hydrogen gas in an improvised and unsafe apparatus, is liable to be prosecuted under section 286-IPC. In the event of an accident can be taken under section 337, 338 or 304-A IPC according to the nature of injuries caused to a person or persons.
4. The Station House Officers should explain the above mentioned provisions to their subordinates and should instruct particularly those officers and men specially who are put on duty in exhibitions and festivals to initiate appropriate action against the offenders. In case of necessity the help of the Anti-Explosive Squad of the Crime Branch may also be obtained. They shall keep a liaison with the local police during festival days and conduct checks on all those, who produce Hydrogen gas.

This supersedes Standing Order No. 160 issued vide this Hdqrs. No.3366-3495/C&T, dated 14.2.72 and circular issued by DCP/Licensing vide No. 10962-79/DCP/Lic., dated 3.6.87.

Sd/-
(B.S. BRAR)DCP/HQ(II),
for COMMISSIONER OF POLICE:DELHI.

No. 14587-800/C&T-AC-V, dated Delhi the 2/3/89

ANNEXURE - I

FORM - E OF THE GAS CYLINDER RULES, 1981

(See Rule 57 and 58)

Licence for the filling of cylinders with compressed gas.

.....

1. The licensed premises shall not be used for any purpose other than filling compressed gas into cylinders and keeping thereof for the time being and for the purpose connected there with.
2. No Cylinder shall be filled with any compressed gas unless:-
 - i) Such cylinder has been approved in writing by the Chief Controller for filling, and
 - ii) the cylinder has been examined and tested as required under the relevant rules.
3. Before filling, every cylinder with its valves and other fittings shall be carefully examined to ensure that it complies in

all respects with the relevant provisions of the rules and shall be completely emptied before it is passed for filling.

4. No cylinder shall be filled with any compressed gas in excess of the design working pressure and the filling ratio prescribed under the rules.

5. Where it becomes necessary to change the valve and other fittings of the cylinder, a check shall be maintained on the tare weight originally stamped on the cylinder and necessary corrections made for any variation.

6. No cylinder which is not painted with appropriate colour as prescribed in the rules shall be filled with any compressed gas.

7. Compressing and filling apparatus for any gas shall be wholly distinct from and the unconnected with the compressing and filling apparatus for any other gas.

8. No cylinder shall be filled with any compressed gas between the hours of sunset and sunrise except in the manner and under such other condition(s) specially endorsed on the licence.

9. All electrical equipment such as motors, switches, starters etc. installed in the premises used for compressing and filling of flammable gases shall be flameproof construction conforming to IS: 2148.

10. No artificial light capable of igniting flammable vapour or gas shall at any time be present at the premises during the filling of any compressed gas in cylinder and no person engaged in such filling shall smoke.

11. Every person managing or employed on or in connection with the licensed premises shall abstain from any act whatsoever which tends to cause fire or explosion and which is not reasonably necessary and to the best of his ability, shall prevent any other person from doing such act.

12. The licensee shall provide at the licensed premises a minimum of two portable foam type or dry chemical type fire extinguishers of 9 Kg. each which shall be kept ready at convenient location for immediate use in the event of any fire. Such fire extinguishers shall be periodically checked for their serviceability.

13. All filling operations shall be supervised under the direct supervision of a competent person.

14. The licensed premises used for compressing and filling of liquified petroleum gas shall at all time maintain a clear safety zone of 10 metres all round from any building, public place, public road or any adjoining property which may be built upon.

15. The licensed premises shall be constructed of non-flammable materials and adequately ventilated.

16. Any accident, fire or explosion within the licensed premises which is attended with loss of life or serious injury to person or property shall be immediately reported to the nearest Magistrate or to the officer-in-charge of the nearest Police Station and by Express telegram to the Chief Controller of Explosives (Telegraphic address "EXPLOSIVES", NAGPUR).

17. Free access to the licensed premises shall be given at all reasonable time to any of the officers listed in rule, 78 and

Licence for the possession of cylinders filled with compressed gas in the licensed premises.

CONDITIONS

1. The licensed premises shall not be used for any purpose other than for keeping of compressed gas filled in cylinders.

2. Compressed gas cylinders shall be stored only in the storage shed which shall be constructed of suitable nonflammable materials provided that, when only non-flammable gas filled in cylinder is stored, the beams, rafters, columns, windows and doors may be of wood.

3. The storage shed shall be adequately ventilated near the ground level and near or in the roof. In case the storage shed is used for keeping L.P. Gas cylinders, the ventilators shall be provided with two thicknesses of line copper or other non-corroding metal wire gauze of mesh not less than 11 to the liner centimeter.

4. As far as possible, different types of gases should not be stored in the same shed. Where different types of gas cylinders are stored in the same shed, cylinders may be grouped together depending on the nature of the gas contained therein e.g. flammable gas cylinders shall be separated from cylinders containing oxidising gases by an intervening space of one metre or by a fire resisting partition wall in between them and cylinders containing toxic gases shall be segregated from the cylinders containing non-toxic gases by a suitable partition wall.

5. The following distances shall be kept clear at all time between any building, public place, public road or any adjoining property which may be built upon and the storage shed used for the storage of liquefied petroleum gas cylinders:-

Quantity of compressed gas in cylinders Kg.	Minimum distance to be kept clear Metres
0	3
101	5
1001	7
4001	9
8001	12
12001	15
Over 30000	

Provided that the distance specified above may be reduced by the Chief Controller (i) where screen walls are provided or other special precautions taken, or (ii) where there are special circumstances which in the opinion of the Chief Controller would justify such reduction.

6. Notwithstanding anything contained in condition 5 above, cylinders containing liquefied petroleum gas exceeding 100 Dg. but not exceeding 300 Kg. may be kept in a storage shed forming part of, or attached to a building, provided that it is separated there from by a substantial partition and the only means of access to it is from outside air such a storage shed shall not be situated under any staircases, or near other entrances to, or exists from the rest of the building or other buildings.

7. A shed used for storage of liquefied petroleum gas cylinders

shall be surrounded by a suitable fence to prevent unauthorised persons from having access to the shed.

8. Thin wall cylinders shall not be stacked in a horizontal position provided that in case of liquefied petroleum gas cylinders, the following method of stacking may be permitted:-

- (i) if stored vertically, shall not be stacked more than 3 high; or
- (ii) if stored horizontally, shall not be stacked more than 5 high in the case of full cylinders and 7 high in the case of empty cylinders.
- (iii) the pile of the cylinders shall be kept stable by using checks at the ends;
- (iv) at least 60 centimetres wide gangway, to permit access and manoeuvring of cylinders, shall be left between stacks of single or double rows and between stacks and walls.

9. True chemical name(s) of the gases shall be prominently displayed in the storage shed.

10. The storage shed shall be in the charge of a competent person.

11. Any accident, fire or explosion within the licensed premises which is attended with loss of life or serious injury to person or property shall be immediately reported to the nearest Magistrate or the Officer-In Charge of the nearest Police Station and by Express Telegram to the Chief Controller of Explosives (Telegraphic address-"EXPLOSIVES", NAGPUR).

12. Any person storing gas cylinders, when called upon by a notice in writing, to execute any additions, alterations or repairs to the gas cylinders storage shed, which in the opinion of the inspecting authority, are necessary for the safety of the premises shall execute the said additions, alterations or repairs within such period not being then one month from the date of receipt of the notice, as may be specified in the notice.

13. No shed used for storage of flammable gases shall be opened and no handling of the gas cylinders shall be permitted between the hours of sunset and sunrise, except where approved electric lighting is exclusively used.

14. The storage shed and the area surrounding it shall at all times be kept clean and free from all flammable materials, waste vegetation and rubbish.

15. (a) No fire, furnace or other source of heat or light other than flameproof electric light and fittings shall be allowed in the storage shed and within the safety zone required to be maintained under condition 5.

(b) No person shall smoke in the storage shed or carry matches, fuses or other appliances for producing ignition in the premises. Conspicuous 'No Smoking' signs in Hindi, English and the regional language shall be pasted or hung up at prominent places outside the storage shed.

16. The licensee shall provide at the licensed premises a minimum of two portable foam type ordinary chemical type fire extinguishers which shall be kept ready at a convenient location

17. Free access to the licensed premises shall be given at all reasonable times to any of the officers listed in rule 78 and every facility shall be afforded to such officer for ascertaining that the rules and the conditions of this licence are duly observed.

ANNEXURE - II GAS CYLINDER RULES: 1981

WARNINGS

Rule-18

Handling and use (1) Cylinders shall be adequately supported during handling.

(2) Trolleys and cradles of adequate strength shall, as far as possible be used when moving the cylinders.

(3) The cylinders shall be handled carefully and not be allowed to fall upon one another or otherwise subjected to any undue shock.

(4) Sliding, dropping or playing with cylinders is prohibited.

(5) Liquefied petroleum gas cylinders and cylinders, containing liquaeifiable gases shall always be kept in an upright position and shall be so placed that they cannot be knocked over.

(6) Cylinders used in horizontal position shall be so secured that they cannot roll.

(7) Open flames, lights, lighting of fires, welding and smoking shall be prohibited in close proximity to any cylinder containing flammable gases except those shole in use for welding, cutting or heating.

(8) Working places shall not be classified as storage places for the purpose of licensing.

Rule-20

Storage of cylinders. (1) Cylinders shall be stored in a cool, dry well ventilated place under cover, away from boilers, open flames, steam pipes or any potential sources of heat and such placed of storage shall be easily accessible.

(2) The storage room or shed shall be of fire resistant construction.

(3) Thin wall cylinders such as liquefied petroleum gas cylinders and dissolved gas cylinders shall not be stacked in a horizontal position.

(4) Cylinders containing flammables gases and toxic gases shall be kept separated from each other and from cylinders containing other types of gases by an adequate distance or by a suitable partition wall.

(5) Cylinders shall not be stored under conditions which will cause them to corrode.

(6) Cylinders shall not be stored alongwith any combustible material.

(7) Empty cylinders shall be segregated from the filled ones and care shall be taken that all the valves are tightly shut.

ANNEXURE - III

CHAPTER IV (GAS CYLINDERS RULES: 1981)

TRANSPORT OF CYLINDERS

Rule-34

Transport of cylinders by vehicles. (1) Cylinders filled with any compressed gas shall not be transported by a bicycle or any other two-wheeled mechanically propelled vehicle.

(2) Cylinders shall be so transported is not to project in the horizontal plane beyond the sides or ends of the vehicle by which they are transported.

(3) There shall be no sharp projections on the inside of the vehicle.

(4) Cylinders shall be adequately secured to prevent their falling off the vehicle and being subjected to rough handling, excessive shocks or local stresses.

(5) Cylinders transported in vehicles shall be blocked or braced and be so secured to prevent movement, striking each other or falling down.

(6) Cylinders filled with any compressed gas shall not be transported alongwith any other article of a highly flammable or corrosive nature.

Rule-35

Restriction on transport. (1) Cylinders containing flammable gases shall not be transported alongwith the cylinders containing any other type of compressed gas.

(2) Cylinders contain toxic or corrosive gas shall not be transported alongwith food-stuffs.